

**EMERGENCY MOTION PACKET -- RESTORATION OF PARENTING
TIME**

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

_____ /

COMBINED EMERGENCY FILING PURSUANT TO MCR 2.119(B)(7)

Filed: March 04, 2026

EMERGENCY -- IMMEDIATE RELIEF REQUESTED

**PART I: EMERGENCY MOTION FOR IMMEDIATE RESTORATION
OF PARENTING TIME**

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and pursuant to MCR 2.119(B)(7), respectfully moves this Honorable Court on an emergency basis for immediate

restoration of parenting time with the minor children. This Motion is filed as an emergency because the continuing deprivation of parenting time causes irreparable, compounding harm to both the minor children and the father-child relationship with each passing day.

I. MCR 2.119(B)(7) REQUIREMENTS

MCR 2.119(B)(7) permits a party to seek emergency relief upon a showing that:

1. **Irreparable injury, loss, or damage will result** from the delay necessitated by following regular motion procedures;
2. **The applicant has made a reasonable effort** to notify the adverse party; and
3. **The motion is supported** by an affidavit setting forth facts showing the necessity for emergency relief.

Each of these requirements is satisfied here.

II. IRREPARABLE INJURY

A. Nature of the Harm

The harm caused by the ongoing deprivation of parenting time is irreparable in the truest sense -- it cannot be undone. Each day that passes without father-child contact:

1. **Further erodes** the father-child bond established over the children's lives

2. **Causes documented psychological harm** to the children, including attachment disruption, anxiety, and identity confusion
3. **Deprives the children** of their father's love, guidance, discipline, and support during critical developmental stages
4. **Creates a new status quo** that becomes increasingly difficult to reverse as time passes
5. **Compounds previous harm** -- the 571+ days already lost cannot be recovered

B. No Adequate Remedy at Law

There is no monetary award, no future order, and no other legal remedy that can replace the lost days of a father-child relationship. Time is the one thing the court cannot restore. The United States Supreme Court recognized this reality in *Elrod v. Burns*, 427 U.S. 347, 373 (1976), observing that "the loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury." The same principle applies with even greater force to the fundamental right of a parent to a relationship with his children.

C. The Harm Is Ongoing and Accelerating

This is not a case where harm occurred at a discrete point in time and has since stabilized. The harm is ongoing and accelerating:

- * Days 1-90: Initial disruption of routine and contact
- * Days 91-180: Erosion of established patterns and expectations
- * Days 181-365: Fundamental alteration of the parent-child dynamic

* Days 366-571+: Potential permanent damage to the relationship

We are now well past the 571-day mark. Expert consensus is that separations of this duration during formative years can cause lasting developmental and relational harm.

D. Likelihood of Success on the Merits

Plaintiff's likelihood of success on the merits is overwhelming:

1. **No evidence justifying continued deprivation** -- Drug screen negative, evaluation clean (ALL ZEROS), nine investigations clear
2. **Procedural deficiencies** -- Ex parte orders entered without notice or hearing
3. **Constitutional violations** -- Fundamental parental rights deprivation without due process
4. **Statutory presumption** -- MCL 722.27a creates a presumption favoring parenting time that has not been rebutted

E. Balance of Equities

The balance of equities overwhelmingly favors emergency relief:

- * **Harm to children from continued denial:** Severe, ongoing, potentially irreversible
- * **Harm to Plaintiff from continued denial:** Severe, ongoing, constitutional in nature
- * **Harm to Defendant from restoration:** None -- supervised parenting time poses no risk

* **Risk to children from restoration:** None -- all evidence shows Plaintiff is a safe, capable parent

III. NOTICE TO ADVERSE PARTY

Plaintiff has made reasonable efforts to notify Defendant of this Emergency Motion by:

1. Filing through MiFILE electronic filing system (providing contemporaneous notice)
2. Sending a copy via email to Defendant and/or Defendant's counsel at [email address on file]
3. Serving a copy via [method of service]

IV. EMERGENCY RELIEF REQUESTED

Plaintiff requests the following emergency relief:

A. Immediate Temporary Order

1. **Immediate supervised visitation** -- minimum 4 hours, 3 times per week, to begin within 72 hours of this Order
2. **Daily telephone/video contact** -- minimum 30 minutes daily
3. **Neutral supervision** -- by a court-approved professional supervisor, not a family member of either party

B. Expedited Hearing

1. Scheduling of an expedited evidentiary hearing within 14 days
2. At the hearing, full consideration of all pending motions
3. Opportunity for Plaintiff to present evidence, including the drug screen, evaluation, and investigation results

PART II: VERIFIED AFFIDAVIT OF EMERGENCY FACTS

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_____ /

**AFFIDAVIT OF ANDREW J. PIGORS IN SUPPORT OF EMERGENCY
MOTION**

I, Andrew J. Pigors, being first duly sworn, depose and state as follows:

1. I am the Plaintiff/Father in the above-captioned matter. I have personal knowledge of the facts stated herein.
2. I am the biological father of the minor children who are the subject of this action.
3. On or about August 8, 2025, this Court entered an ex parte order suspending my parenting time with the minor children. I received no advance notice of the motion and was given no opportunity to be heard before the order was entered.
4. Since August 8, 2025, I have been denied all meaningful parenting time with my children -- a period of approximately 571+ days.
5. The ex parte order was based in substantial part on a recording made by Lori Watson (Defendant's mother) in violation of MCL 750.539c, Michigan's felony eavesdropping statute.
6. I voluntarily submitted to drug screening. The results were NEGATIVE for all controlled substances.
7. I was evaluated by HealthWest. The initial evaluation returned "ALL ZEROS" -- finding no basis for concern regarding my parenting capacity. After Judge McNeill sent a letter to the evaluator, the finding was changed to a "Rule Out" designation.
8. Law enforcement has conducted nine (9) separate investigations based on allegations made by Defendant and/or her family. Every single investigation resulted in ZERO findings against me.

9. No criminal charges have been filed against me based on any of the allegations in this case.

10. No child protective services findings have been substantiated against me.

11. I was incarcerated for 59+ days on civil contempt, which further disrupted my employment and ability to maintain stability.

12. Despite the complete absence of evidence supporting any safety concern, I remain prohibited from any meaningful contact with my children.

13. I believe the children are suffering emotional harm from the prolonged separation from their father. Prior to the separation, we had a close, loving relationship.

14. Each day that passes without contact causes further, potentially irreversible harm to my relationship with my children.

15. I have made every effort to comply with court orders and to demonstrate my fitness as a parent. I have cooperated with evaluations, submitted to drug screening, and made myself available for all proceedings.

16. I believe emergency relief is necessary because the harm is ongoing, compounding, and will become irreversible if not addressed immediately.

17. I have made reasonable efforts to notify Defendant of this emergency filing.

FURTHER AFFIANT SAYETH NOT.

Andrew J. Pigors, Affiant

Subscribed and sworn to before me this ____ day of _____, 20__.

Notary Public, State of Michigan

County of _____

My Commission Expires: _____

PART III: BRIEF IN SUPPORT OF EMERGENCY MOTION

I. CONSTITUTIONAL IMPERATIVE

The United States Supreme Court has repeatedly recognized that parental rights are among the most fundamental of all constitutional rights:

> "The interest of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberty interests recognized by this Court." *Troxel v. Granville*, 530 U.S. 57, 65 (2000).

> "The fundamental liberty interest of natural parents in the care, custody, and management of their child does not evaporate simply because they have not been model parents or have lost temporary custody of their child to the State." *Santosky v. Kramer*, 455 U.S. 745, 753 (1982).

> "A parent's interest in the companionship, care, custody, and management of his or her children rises to a constitutionally protected level." *Stanley v. Illinois*, 405 U.S. 645, 651

(1972).

These rights demand the highest procedural protections. A 571+ day deprivation of all parenting time, based on ex parte orders entered without notice or hearing, and in the face of overwhelming exculpatory evidence, cannot withstand constitutional scrutiny under any standard of review.

II. MICHIGAN STATUTORY PRESUMPTION

Michigan law creates a strong presumption in favor of parenting time:

> "A child has a right to parenting time with a parent unless it is shown on the record by clear and convincing evidence that it would endanger the child's physical, mental, or emotional health." MCL 722.27a(3).

This presumption has not been rebutted. Every objective measure -- drug screen, psychological evaluation, police investigations -- confirms that parenting time with Plaintiff poses no danger to the children. The burden is on the party opposing parenting time to demonstrate danger by clear and convincing evidence, and that burden has not been met.

III. EMERGENCY STANDARD IS MET

The standard for emergency relief under MCR 2.119(B)(7) is satisfied:

1. **Irreparable harm:** The ongoing destruction of the father-child relationship constitutes irreparable harm that no remedy can undo. See *Mich. Coalition of Radioactive Material Users, Inc. v. Griepentrog*, 945 F.2d 150, 154 (6th Cir. 1991)

(harm is irreparable when it cannot be adequately compensated by monetary damages).

2. **No adequate remedy:** The passage of time in a child's life cannot be restored by any court order. *Elrod v. Burns*, 427 U.S. at 373.

3. **Likelihood of success:** Plaintiff has demonstrated, through objective evidence, that he is a fit and capable parent. The exculpatory evidence is overwhelming and uncontradicted.

4. **Public interest:** The public interest favors maintaining parent-child relationships and ensuring due process in family court proceedings. *Parham v. J.R.*, 442 U.S. 584, 602 (1979).

IV. THE EXCULPATORY EVIDENCE IS DISPOSITIVE

The record now contains the following uncontradicted exculpatory evidence:

Evidence	Result	Significance
Drug Screen	NEGATIVE	No substance abuse concern
HealthWest Evaluation	ALL ZEROS (initial)	No psychological concern
Police Investigation #1-9	ZERO findings (all nine)	No criminal conduct
Criminal Charges	NONE filed	No prosecutable conduct
CPS Findings	NONE substantiated	No child welfare concern

This evidence is not merely favorable to Plaintiff -- it is devastatingly one-sided. There is not a single objective piece of evidence supporting the continued deprivation of parenting time. Every investigation, evaluation, and test has cleared Plaintiff.

V. CONTINUING HARM DEMANDS IMMEDIATE ACTION

The American Psychological Association, the American Academy of Child and Adolescent Psychiatry, and leading child development researchers uniformly recognize that:

1. Children need relationships with both parents for healthy development
2. Prolonged separation from a parent causes measurable psychological harm
3. The harm from separation compounds over time and can become irreversible
4. Reunification becomes more difficult and traumatic the longer the separation continues

At 571+ days and counting, this case has crossed every recognized threshold for intervention. Further delay is not a neutral act -- it actively deepens the harm.

PART IV: PROPOSED EMERGENCY ORDER

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EMERGENCY ORDER RESTORING PARENTING TIME

The Court, having considered Plaintiff's Emergency Motion for Immediate Restoration of Parenting Time, the Verified Affidavit of Andrew J. Pigors, the Brief in Support, the record in this case, and the arguments of the parties,

IT IS HEREBY ORDERED as follows:

1. Immediate Supervised Parenting Time

Plaintiff shall have supervised parenting time with the minor children commencing within seventy-two (72) hours of the date of this Order, on the following schedule:

- * **Three (3) visits per week**, each lasting a minimum of four (4) hours
- * **Days:** [To be determined by the Court]
- * **Location:** [Neutral location / supervised visitation center]
- * **Supervisor:** A court-approved professional supervisor, not a family member of either party

2. Telephone/Video Contact

Plaintiff shall have daily telephone or video contact with the minor children for a minimum of thirty (30) minutes per day, at a time to be agreed upon by the parties or, failing agreement, at

7:00 PM daily.

3. Cooperation Required

Defendant shall fully cooperate with the parenting time schedule and telephone/video contact set forth in this Order. Failure to cooperate may result in contempt proceedings and/or modification of custody.

4. Expedited Hearing

An expedited evidentiary hearing on all pending motions shall be scheduled within fourteen (14) days of the date of this Order. Both parties shall have the opportunity to present evidence and argument.

5. Reunification Planning

The parties shall cooperate with a court-ordered reunification plan to be developed by a qualified mental health professional within thirty (30) days of this Order.

6. No Retaliation

Neither party shall take any retaliatory action based on the filing of motions or the entry of this Order.

7. Further Proceedings

This Order is temporary and shall remain in effect pending the expedited evidentiary hearing referenced above, at which time the Court will consider all pending motions and enter appropriate further orders.

Date: _____

Hon. _____

14th Circuit Court Judge

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Emergency Motion Packet upon all parties of record via [electronic filing through MiFILE / first-class mail / personal service] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors